

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1376

By: Boles

AS INTRODUCED

An Act relating to state government; amending 74 O.S. 2021, Section 5060.26, which relates to the Oklahoma Alliance for Manufacturing Excellence; modifying composition of board of directors; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 5060.26, is amended to read as follows:

Section 5060.26. A. A private, not-for-profit corporation may be organized pursuant to the provisions of Title 18 of the Oklahoma Statutes and the provisions of this act to develop the Industrial Extension System in Oklahoma, with a special emphasis on minority business enterprises. Such corporation, upon certification by Oklahoma Futures, shall be known as and may exercise all of the powers of OAME.

B. In addition to the provisions and requirements of Title 18 of the Oklahoma Statutes, the certificate of incorporation and the

1 bylaws of OAME must be certified by Oklahoma Futures and the  
2 certificate of incorporation shall:

3 1. Designate the name of the corporation as the Oklahoma  
4 Alliance for Manufacturing Excellence, Inc.;

5 2. Provide that the exclusive purposes of OAME are public  
6 purposes to assist small and medium-sized manufacturing firms, with  
7 a special emphasis on minority business enterprises, to gain the  
8 ability, through education, technology transfer, and otherwise, to  
9 compete successfully at progressively higher levels of value-added  
10 in the national and international economy;

11 3. Provide for the following three classes of membership in  
12 OAME which shall have representation on the Board of Directors of  
13 OAME:

14 a. one class composed of small and medium-sized  
15 manufacturing firms located in Oklahoma, and the  
16 certificate of incorporation shall provide for the  
17 qualifications for membership in such class,

18 b. one class composed of large corporations, and the  
19 certificate of incorporation shall provide for the  
20 qualifications for membership in such class, and

21 c. one class composed of state entities, including, but  
22 not limited to, the Oklahoma Center for the  
23 Advancement of Science and Technology, the Oklahoma  
24 Department of Commerce, the Oklahoma Department of

Career and Technology Education, and the Oklahoma  
State Regents for Higher Education;

4. Provide for classes of associate membership which shall not  
have representation on the Board of Directors of OAME, except as  
provided in paragraph 5 of this subsection;

5. Provide that the Board of Directors of OAME shall consist of  
~~five~~ nine representatives of members who shall be individuals  
elected at the first annual meeting of OAME by members of the class  
composed of small and medium-sized manufacturing firms, and four  
representatives of members who shall be individuals elected at the  
first annual meeting of OAME by members of the class composed of  
large corporations. The Board of Directors also shall include the  
~~President~~ following state governmental representatives as ex officio  
members: the Executive Director of the Oklahoma Center for the  
Advancement of Science and Technology, ~~the Executive Director of a~~  
designee from the Oklahoma Department of Commerce, ~~the Director of~~  
and a designee from the Oklahoma Department of Career and Technology  
Education ~~and the Chancellor of Higher Education as ex officio~~  
~~members~~ (CareerTech). The bylaws of OAME may provide for designees  
who may serve in the place of any of the directors and the terms  
under which any such designation will be made. The Board of  
Directors shall have the power to elect, from time to time, persons  
to serve as directors who are associate members or are not  
affiliated with any entity or firm which qualifies for membership in

1 OAME, provided that no more than ~~three (3)~~ one of such persons shall  
2 serve on the Board of Directors at any time;

3 6. Have the authority to set membership dues in an amount to be  
4 determined by the Board of Directors. No participating state entity  
5 shall pay membership dues;

6 7. Provide for all powers necessary or appropriate to carry out  
7 and effectuate its corporate purposes, including, but not limited  
8 to, the following:

9 a. to maintain an office at such place or places as it  
10 may designate,

11 b. to make and execute contracts with any individual,  
12 corporation, association or any other entity and all  
13 other instruments necessary or convenient for the  
14 performance of its duties and the exercise of its  
15 powers and functions under this act,

16 c. to receive funds from any source to carry out the  
17 purposes of this act, including, but not limited to,  
18 gifts or grants from any department, agency or  
19 instrumentality of the United States or of the state  
20 for any purpose consistent with the provisions of this  
21 act,

22 d. to acquire or sell, convey, lease, exchange, transfer  
23 or otherwise dispose of its property or any interest  
24 therein,

- 1 e. to develop plans and policies to assist small and  
2 medium-sized manufacturing companies in Oklahoma,
- 3 f. to enter into contracts to provide assistance to small  
4 and medium-sized manufacturing companies, including,  
5 but not limited to, the following categories:
- 6 (1) technology,  
7 (2) human resources development,  
8 (3) market planning,  
9 (4) finance, and  
10 (5) inter-firm collaboration,
- 11 g. to assist other organizations providing general  
12 business assistance to small and medium-sized  
13 manufacturing enterprises,
- 14 h. to establish manufacturing quality and standards  
15 certification programs, setting minimum standards and  
16 issuing certification to companies meeting such  
17 standards,
- 18 i. to develop and distribute information about  
19 manufacturing modernization and assistance that is  
20 available to support efforts to improve the abilities  
21 of small and medium-sized firms to produce and market  
22 higher value-added products,  
23  
24

- 1           j.    to establish a system to evaluate the effectiveness  
2                   and efficiency of services provided to small and  
3                   medium-sized manufacturing firms,  
4           k.    to establish and operate, directly or under contract,  
5                   an information system designed to access resources  
6                   that will assist the firms to become more productive,  
7           l.    establish a training program for individuals working  
8                   on behalf of small and medium-sized manufacturing  
9                   firms, and  
10          m.    to establish special educational and informational  
11                   programs for its members.

12       SECTION 2. This act shall become effective July 1, 2025.

13       SECTION 3. It being immediately necessary for the preservation  
14 of the public peace, health or safety, an emergency is hereby  
15 declared to exist, by reason whereof this act shall take effect and  
16 be in full force from and after its passage and approval.

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